

"would seriously cripple the proper and effective administration of public affairs as entrusted to the executive branch of government" (id. at 498). Consequently, the Court ruled that a Department head "cannot be held liable to a civil suit for damages on account of official communications made by him pursuant to an act of Congress, and in respect of matters within his authority" and, further, that the official's motives were "wholly immaterial" to this immunity (id. at 498-99).^{13/}

Spalding left unanswered the question whether executive immunity would protect officials who did not have Cabinet rank. This was answered affirmatively in Barr v. Matteo, 360 U.S. 564.^{14/} That case sought damages from the Acting Director of the Office of Rent Stabilization for issuing a press release that allegedly libeled the plaintiff. Adopting a pragmatic approach, the Court recognized that "[t]he complexities and magnitude of governmental activity have become so great that there must of necessity be a delegation and redelegation of authority as to many functions" and refused to accept "that these functions become less important simply because they are exercised by

^{13/} A similar immunity for civilian officials was recognized in England by the decision in Chatterton v. Secretary of State of India, [1895] 2 Q.B. 189, discussed in Barr v. Matteo, 360 U.S. 564, 581 (1959) (Warren, C.J., dissenting).

^{14/} In a companion decision, the Court held that federal law governs the immunity that protects federal officials (Howard v. Lyons, 360 U.S. 593, 597 (1959)).